

Exhibit H: John Ledwith, Deputy Clerk/Treasurer, Chronology

Prepared for: Memorandum to the Village Board of Tuxedo Park

Executive finding

OSC reported no significant findings concerning the Clerk/Treasurer activities examined, while identifying a segregation-of-duties weakness. The Village's October 16, 2018 response stated that no misappropriation or serious misconduct was discovered. OSC did not name Ledwith or describe him as cleared, exonerated, or vindicated.

Documented chronology

Mayor / admin.	Date	Event	What the record establishes
Pre-July 2017 / transition	January 1, 2015–May 17, 2017	Principal OSC audit period	Covered the Clerk/Treasurer function and ended before McFadden became Mayor in July 2017
Pre-July 2017 / transition	April 2017	John Ledwith, then Deputy Clerk/Treasurer, was fired	OSC states that the Deputy Clerk/Treasurer was fired in April 2017
McFadden	September 13, 2017	Board authorized a consulting agreement with Mr. Ledwith	The published court decision quotes the Board resolution
McFadden	September 2017	McFadden administration brought Mr. Ledwith back to Village service	Agreement covered building-inspection, code-enforcement, and water-related responsibilities
McFadden	January 19, 2018	Claudio Guazzoni and Robert Zgonena commenced litigation	Defendants included the Village, David McFadden as Mayor, and John Ledwith as a necessary party; plaintiffs challenged the agreement and sought personal repayment by McFadden
McFadden	June 12, 2018	Supreme Court decided the dismissal motion	Court dismissed Claudio Guazzoni for lack of capacity and standing, declined to dismiss the remaining claims at that stage, and made no finding that Mr. Ledwith committed financial wrongdoing
McFadden	October 16, 2018	Village response to OSC	Response stated that no misappropriation or serious misconduct was discovered
McFadden	November 2018	OSC issued Report 2018M-66	Audit disclosed no significant findings regarding Clerk/Treasurer activities but identified a structural segregation-of-duties risk

Litigation qualification

David McFadden's best recollection is that the remaining matter was later dropped or dismissed and was not resolved through a negotiated settlement. Because the published June 12, 2018 decision does not establish the later disposition, this exhibit does not assign a formal procedural term to it.

Sources

- New York State Office of the State Comptroller, Village of Tuxedo Park: Board Oversight, Report 2018M-66.
- New York Supreme Court, Orange County, Guazzoni and Zgonena v. Village of Tuxedo Park, David McFadden, Mayor, and John Ledwith, June 12, 2018, Index No. EF000551-2018.